

CASE-026

CASE ID: CASE-026.

ADVOCATE: Adv. Meera Krishnan (advocate-002).

PRACTICE AREA: constitutional.

JURISDICTION: Karnataka.

COURT: High Court.

PROCEDURAL STAGE: Judgment.

DECIDED ON: 12/09/2018.

FORUM: HIGH COURT OF KARNATAKA.

OUTCOME: The Court considered the constitutional question and disposed of the proceedings with the appropriate relief.

MATTER NO.: CASE-026 - constitutional - Karnataka.

CASE SUMMARY

Matter No. CASE-026 involving a constitutional dispute handled by the advocate in Karnataka. A public authority took a measure alleged to affect the rights of the petitioner. No adequate opportunity was afforded before the impugned action, and the petitioner invoked constitutional remedies.

FACTS

A public authority took a measure alleged to affect the rights of the petitioner. No adequate opportunity was afforded before the impugned action, and the petitioner invoked constitutional remedies.

LEGAL ISSUES

Whether the impugned action infringes a constitutionally guaranteed right; whether the limitation on the right is justified and proportionate; and whether the remedy sought lies.

APPLICABLE LAW

The fundamental rights provisions and the constitutional scheme governing the restriction of rights and the availability of writ remedies.

EVIDENCE

The petition, the impugned order or action, official correspondence and the affidavit of the petitioner.

ARGUMENTS

It was submitted on behalf of the party that the facts and the applicable law together establish the relief prayed for. The opposing side relied on the material on record in support of its case.

RELIEF SOUGHT

FUNDAMENTAL RIGHTS - WRIT PROCEEDINGS

OUTCOME

The Court considered the constitutional question and disposed of the proceedings with the appropriate relief.

CASE METADATA

WRIT NO. 026/2018.

FORUM: HIGH COURT OF KARNATAKA.

DECIDED ON: 12/09/2018.

STATUTES REFERRED: Constitution of India.

SYNTHETIC DEMONSTRATION DATA - NOT A REAL LEGAL CASE